

ARRANGEMENT OF SECTIONS

Section

1. Section 6 of Act 896 amended
2. Section 85 of Act 896 amended
3. Section 115 of Act 896 amended
4. Section 119 of Act 896 amended
5. First Schedule to Act 896 amended



REPUBLIC OF GHANA

THE ONE THOUSAND ONE HUNDRED AND THIRTY-FOURTH

ACT

OF THE PARLIAMENT OF THE REPUBLIC OF GHANA
ENTITLED

INCOME TAX (AMENDMENT) ACT, 2025

AN ACT to amend the Income Tax Act, 2015 (Act 896) to remove the withholding on winnings from lottery and on purchase of unprocessed gold and to provide for related matters.

DATE OF ASSENT: *2nd April, 2025*

PASSED by Parliament and assented to by the President

Section 6 of Act 896 amended

1. The Income Tax Act, 2015 (Act 896), referred to in this Act as the “principal enactment”, is amended in section 6 by the deletion of subparagraph (vii) of paragraph (a) of subsection (2).

Section 85 of Act 896 amended

2. The principal enactment is amended in subsection (5) of section 85 by the substitution for the definition of “unprocessed precious mineral”, of

““unprocessed precious mineral” means unprocessed rough diamonds within the meaning given in the

Minerals and Mining Act, 2006 (Act 703) and other minerals as may be prescribed by Regulations.”.

Section 115 of Act 896 amended

3. The principal enactment is amended in section 115 by the substitution for subsection (1), of

“(1) Subject to subsection (2), a resident person shall withhold tax at the rate specified in paragraph 8 of the First Schedule where that person pays

(a) any dividend, interest, natural resource payment, rent or royalty to another person, or

(b) consideration to another person in respect of the realisation of an asset or a liability

and the payment has a source in the country.”.

Section 119 of Act 896 amended

4. The principal enactment is amended in section 119 by the deletion of paragraph (f) of subsection (1).

First Schedule to Act 896 amended

5. The principal enactment is amended in paragraph 8 by the deletion of subparagraph 1(b)(x).

Date of *Gazette* notification: 2nd April, 2025.

Minerals and Minerals Act 2006 (Act 703) and other minerals is hereby prescribed by Regulations."

Section 112 of Act 896 amended

3. The principal enactment is amended in section 112 by the substitution for subsection (1) of

"(1) Subject to subsection (2), a resident person shall be deemed to be the owner of the mineral rights in the land if the person pays for the mineral rights, interest, natural resource payment, rent or royalty to another person, or

(b) consideration to another person in respect of the realisation of an asset or a liability

and the person has a source in the country."

Section 119 of Act 896 amended

4. The principal enactment is amended in section 119 by the deletion of paragraph (b) of subsection (1) to read

First Schedule to Act 896 amended

5. The principal enactment is amended in paragraph 8 by the deletion of paragraph (b)(i)

6. The principal enactment is amended in paragraph 10 by the deletion of paragraph (b)(i)

7. The principal enactment is amended in paragraph 11 by the deletion of paragraph (b)(i)

Law of Ghana (Amendment) Act 2025